CERTIFICATE OF INSURANCE

Elmhurst Commons | Boise, ID

Insured	Elmhurst Commons Owner LLC
Location Covered	Elmhurst Commons, 2711 Lakeview Way, Boise, ID 15858
Certificate Date	July 2, 2026
Mortgagee	Northfield Commercial Bank

Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Allied Heritage Insurance	GL6660110	09/02/2023	09/01/2024	$50,000,000	$100,000
General Liability	Sentinel Property & Casualty	GL6063261	08/25/2024	08/25/2025	$5,000,000	$50,000
Umbrella / Excess	Keystone Casualty	GL6146260	05/26/2024	05/26/2025	$5,000,000	$10,000
Business Income	Allied Heritage Insurance	UMB9934781	08/12/2023	08/11/2024	$5,000,000	$100,000
Flood	Blue Ridge Underwriters	BOP5228191	10/25/2024	10/25/2025	$1,000,000	$50,000
Windstorm / Hail	Sentinel Property & Casualty	BOP1207842	04/12/2026	04/12/2027	$1,000,000	$50,000
Terrorism (TRIA)	Sentinel Property & Casualty	UMB7697680	09/24/2025	09/24/2026	$2,000,000	$50,000
Equipment Breakdown	Allied Heritage Insurance	BOP2551173	03/01/2024	03/01/2025	$5,000,000	$25,000
Ordinance & Law	Great Lakes Mutual	CPP9995941	03/29/2025	03/29/2026	$10,000,000	$25,000
Workers' Compensation	Allied Heritage Insurance	UMB2266203	09/06/2023	09/05/2024	$5,000,000	$5,000
Cyber Liability	Allied Heritage Insurance	BOP9028355	11/29/2025	11/29/2026	$50,000,000	$50,000
Crime / Fidelity	Blue Ridge Underwriters	BOP1012457	07/22/2025	07/22/2026	$25,000,000	$10,000
Pollution Legal Liability	Sentinel Property & Casualty	BOP9396267	03/07/2025	03/07/2026	$5,000,000	$5,000
Employment Practices	Allied Heritage Insurance	BOP9245887	04/06/2023	04/05/2024	$25,000,000	$10,000

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Sentinel Property & Casualty	BOP6708564	03/01/2026	03/01/2027	$10,000,000	$5,000
General Liability	Allied Heritage Insurance	UMB8066072	09/14/2024	09/14/2025	$2,000,000	$50,000
Umbrella / Excess	Great Lakes Mutual	BOP8357737	07/23/2024	07/23/2025	$50,000,000	$100,000
Business Income	Keystone Casualty	BOP5779620	03/22/2024	03/22/2025	$25,000,000	$5,000
Flood	Sentinel Property & Casualty	GL3241306	03/19/2026	03/19/2027	$50,000,000	$100,000
Windstorm / Hail	Prairie State Indemnity	UMB2630566	04/21/2026	04/21/2027	$50,000,000	$50,000
Terrorism (TRIA)	Great Lakes Mutual	BOP8869194	01/19/2024	01/18/2025	$10,000,000	$50,000
Equipment Breakdown	Prairie State Indemnity	BOP8584800	04/03/2025	04/03/2026	$2,000,000	$10,000
Ordinance & Law	Blue Ridge Underwriters	CPP9950913	01/21/2025	01/21/2026	$5,000,000	$5,000
Workers' Compensation	Blue Ridge Underwriters	UMB4706237	07/06/2023	07/05/2024	$5,000,000	$10,000
Cyber Liability	Allied Heritage Insurance	BOP2700532	07/23/2025	07/23/2026	$50,000,000	$50,000
Crime / Fidelity	Keystone Casualty	UMB1559136	03/29/2023	03/28/2024	$1,000,000	$25,000
Pollution Legal Liability	Great Lakes Mutual	GL4489612	02/05/2026	02/05/2027	$2,000,000	$25,000
Employment Practices	Allied Heritage Insurance	UMB5026081	01/05/2023	01/05/2024	$50,000,000	$10,000

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1. Appointment. Owner appoints Manager as the exclusive managing agent of Elmhurst Commons, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID.

3. Management Fee. Manager shall receive a monthly management fee equal to 5.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID.

7. Spending Authority. Manager may incur expenses not exceeding $127,000 individually without Owner approval, except in an emergency threatening life or property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID. Time is of the essence with respect to each and every provision of this instrument.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Great Lakes Mutual	GL9554808	07/21/2025	07/21/2026	$1,000,000	$100,000
General Liability	Great Lakes Mutual	CPP7091740	01/31/2023	01/31/2024	$10,000,000	$25,000
Umbrella / Excess	Allied Heritage Insurance	UMB7477088	02/27/2026	02/27/2027	$50,000,000	$50,000
Business Income	Prairie State Indemnity	UMB3380655	04/30/2025	04/30/2026	$10,000,000	$100,000
Flood	Prairie State Indemnity	BOP8033472	04/06/2026	04/06/2027	$25,000,000	$25,000
Windstorm / Hail	Allied Heritage Insurance	BOP2943173	07/10/2023	07/09/2024	$1,000,000	$25,000
Terrorism (TRIA)	Prairie State Indemnity	GL7725691	02/16/2025	02/16/2026	$2,000,000	$100,000
Equipment Breakdown	Blue Ridge Underwriters	GL8128526	12/17/2025	12/17/2026	$1,000,000	$25,000
Ordinance & Law	Blue Ridge Underwriters	UMB6146317	11/02/2025	11/02/2026	$5,000,000	$50,000
Workers' Compensation	Great Lakes Mutual	CPP8744041	07/10/2025	07/10/2026	$10,000,000	$50,000
Cyber Liability	Allied Heritage Insurance	BOP4190249	01/04/2024	01/03/2025	$5,000,000	$5,000
Crime / Fidelity	Allied Heritage Insurance	BOP6336068	03/17/2024	03/17/2025	$25,000,000	$100,000
Pollution Legal Liability	Great Lakes Mutual	BOP3530026	03/11/2026	03/11/2027	$5,000,000	$25,000
Employment Practices	Blue Ridge Underwriters	UMB3391957	11/07/2023	11/06/2024	$1,000,000	$25,000

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Elmhurst Commons, and Manager accepts the appointment under the terms of this Agreement. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

12. Management Fee. Manager shall receive a monthly management fee equal to 5.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID. Time is of the essence with respect to each and every provision of this instrument.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Commercial Property	Prairie State Indemnity	CPP7221201	11/07/2024	11/07/2025	$50,000,000	$10,000
General Liability	Great Lakes Mutual	CPP2660336	10/13/2025	10/13/2026	$10,000,000	$25,000
Umbrella / Excess	Blue Ridge Underwriters	GL6036951	03/31/2024	03/31/2025	$25,000,000	$50,000
Business Income	Sentinel Property & Casualty	UMB9642076	09/30/2023	09/29/2024	$50,000,000	$10,000
Flood	Blue Ridge Underwriters	UMB1923274	10/03/2024	10/03/2025	$1,000,000	$25,000
Windstorm / Hail	Sentinel Property & Casualty	CPP5119467	12/26/2023	12/25/2024	$10,000,000	$25,000
Terrorism (TRIA)	Allied Heritage Insurance	UMB5969594	11/17/2024	11/17/2025	$2,000,000	$100,000
Equipment Breakdown	Allied Heritage Insurance	GL1444014	11/04/2023	11/03/2024	$50,000,000	$5,000
Ordinance & Law	Blue Ridge Underwriters	CPP7701369	03/05/2026	03/05/2027	$5,000,000	$10,000
Workers' Compensation	Keystone Casualty	GL8244735	08/14/2024	08/14/2025	$25,000,000	$25,000
Cyber Liability	Sentinel Property & Casualty	GL5760273	02/06/2026	02/06/2027	$10,000,000	$50,000
Crime / Fidelity	Sentinel Property & Casualty	UMB1718490	02/24/2024	02/23/2025	$50,000,000	$50,000
Pollution Legal Liability	Keystone Casualty	CPP6653227	12/28/2023	12/27/2024	$10,000,000	$25,000
Employment Practices	Great Lakes Mutual	BOP9363101	11/03/2024	11/03/2025	$50,000,000	$25,000

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

16. Spending Authority. Manager may incur expenses not exceeding $158,000 individually without Owner approval, except in an emergency threatening life or property. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Elmhurst Commons, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

21. Management Fee. Manager shall receive a monthly management fee equal to 5.6% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Sentinel Property & Casualty	CPP8908159	08/01/2023	07/31/2024	$2,000,000	$10,000
General Liability	Sentinel Property & Casualty	BOP5382669	08/09/2025	08/09/2026	$5,000,000	$100,000
Umbrella / Excess	Allied Heritage Insurance	CPP7997392	03/29/2023	03/28/2024	$5,000,000	$100,000
Business Income	Blue Ridge Underwriters	CPP9221108	01/17/2026	01/17/2027	$10,000,000	$50,000
Flood	Sentinel Property & Casualty	UMB6818509	04/12/2023	04/11/2024	$10,000,000	$50,000
Windstorm / Hail	Keystone Casualty	CPP8634010	04/19/2024	04/19/2025	$50,000,000	$100,000
Terrorism (TRIA)	Prairie State Indemnity	UMB4463535	07/21/2025	07/21/2026	$10,000,000	$10,000
Equipment Breakdown	Blue Ridge Underwriters	UMB4992335	03/13/2023	03/12/2024	$25,000,000	$25,000
Ordinance & Law	Allied Heritage Insurance	UMB8725263	11/10/2025	11/10/2026	$25,000,000	$50,000
Workers' Compensation	Great Lakes Mutual	CPP6684507	05/13/2026	05/13/2027	$25,000,000	$5,000
Cyber Liability	Blue Ridge Underwriters	UMB8896696	09/20/2025	09/20/2026	$10,000,000	$5,000
Crime / Fidelity	Blue Ridge Underwriters	CPP5336794	07/10/2023	07/09/2024	$50,000,000	$100,000
Pollution Legal Liability	Allied Heritage Insurance	GL1878218	07/10/2025	07/10/2026	$50,000,000	$25,000
Employment Practices	Prairie State Indemnity	UMB1219302	07/29/2025	07/29/2026	$2,000,000	$100,000

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22. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

23. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID.

24. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

25. Spending Authority. Manager may incur expenses not exceeding $90,000 individually without Owner approval, except in an emergency threatening life or property. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

26. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

27. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

28. Appointment. Owner appoints Manager as the exclusive managing agent of Elmhurst Commons, and Manager accepts the appointment under the terms of this Agreement. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Commercial Property	Keystone Casualty	GL9518371	08/19/2023	08/18/2024	$25,000,000	$5,000
General Liability	Blue Ridge Underwriters	BOP7630642	12/19/2024	12/19/2025	$50,000,000	$5,000
Umbrella / Excess	Prairie State Indemnity	CPP9899258	08/10/2023	08/09/2024	$10,000,000	$10,000
Business Income	Sentinel Property & Casualty	GL7608854	02/04/2026	02/04/2027	$2,000,000	$50,000
Flood	Blue Ridge Underwriters	GL2360178	11/18/2023	11/17/2024	$50,000,000	$50,000
Windstorm / Hail	Allied Heritage Insurance	BOP2776705	05/11/2026	05/11/2027	$25,000,000	$25,000
Terrorism (TRIA)	Prairie State Indemnity	UMB9001017	04/28/2024	04/28/2025	$5,000,000	$10,000
Equipment Breakdown	Great Lakes Mutual	CPP2115788	03/15/2023	03/14/2024	$25,000,000	$10,000
Ordinance & Law	Prairie State Indemnity	BOP2831394	02/01/2024	01/31/2025	$25,000,000	$25,000
Workers' Compensation	Great Lakes Mutual	BOP2768565	10/29/2025	10/29/2026	$1,000,000	$10,000
Cyber Liability	Blue Ridge Underwriters	CPP2355733	05/27/2025	05/27/2026	$5,000,000	$50,000
Crime / Fidelity	Prairie State Indemnity	GL1913671	09/29/2025	09/29/2026	$1,000,000	$100,000
Pollution Legal Liability	Blue Ridge Underwriters	BOP3502290	07/01/2025	07/01/2026	$5,000,000	$10,000
Employment Practices	Blue Ridge Underwriters	UMB8692239	02/17/2025	02/17/2026	$1,000,000	$100,000

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30. Management Fee. Manager shall receive a monthly management fee equal to 6.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

31. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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33. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

34. Spending Authority. Manager may incur expenses not exceeding $184,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

35. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Commercial Property	Prairie State Indemnity	BOP4618046	02/08/2023	02/08/2024	$1,000,000	$25,000
General Liability	Keystone Casualty	GL1739084	04/08/2023	04/07/2024	$10,000,000	$10,000
Umbrella / Excess	Allied Heritage Insurance	GL1506842	01/29/2023	01/29/2024	$50,000,000	$5,000
Business Income	Great Lakes Mutual	UMB7684046	11/25/2025	11/25/2026	$10,000,000	$5,000
Flood	Keystone Casualty	CPP9602539	05/07/2025	05/07/2026	$50,000,000	$25,000
Windstorm / Hail	Blue Ridge Underwriters	UMB6640430	12/30/2023	12/29/2024	$50,000,000	$50,000
Terrorism (TRIA)	Prairie State Indemnity	GL7200018	03/19/2025	03/19/2026	$5,000,000	$100,000
Equipment Breakdown	Blue Ridge Underwriters	GL5574249	02/19/2024	02/18/2025	$2,000,000	$5,000
Ordinance & Law	Prairie State Indemnity	GL6601038	02/02/2026	02/02/2027	$1,000,000	$50,000
Workers' Compensation	Sentinel Property & Casualty	BOP6955856	04/05/2025	04/05/2026	$1,000,000	$5,000
Cyber Liability	Great Lakes Mutual	BOP1264203	11/19/2024	11/19/2025	$25,000,000	$25,000
Crime / Fidelity	Prairie State Indemnity	GL6981752	08/24/2024	08/24/2025	$25,000,000	$10,000
Pollution Legal Liability	Blue Ridge Underwriters	UMB8396716	08/11/2025	08/11/2026	$10,000,000	$10,000
Employment Practices	Prairie State Indemnity	CPP5250368	05/29/2023	05/28/2024	$10,000,000	$100,000

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37. Appointment. Owner appoints Manager as the exclusive managing agent of Elmhurst Commons, and Manager accepts the appointment under the terms of this Agreement. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

38. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

39. Management Fee. Manager shall receive a monthly management fee equal to 6.5% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

40. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

41. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of ID.

42. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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Disclaimer and Confidentiality

The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This document relates solely to Elmhurst Commons and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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